

June 12, 2026
Dept. 9
Tentative Rulings

4.	25CV3506	PATRICIA MOYLE, AN ADULT, BY AND THROUGH HER GUARDIAN AD LITEM, ISABELLE VALDEZ ET AL VS. GLADIOLUS HOLDINGS, LLC DBA THE PINES AT PLACERVILLE HEALTHCARE CENTER ET AL
MOTION TO COMPEL ARBITRATION AND REQUEST FOR STAY		

Defendant filed this motion to compel arbitration on April 22, 2026. The Plaintiff filed their opposition on June 8, 2026 claiming the arbitration provision is not binding as the Plaintiff did not sign it, the person who signed it had no authority to do so, and there are no extrinsic facts which could bind the Plaintiff to the agreement and even were there to be such facts, they could not bind the Guardian ad Liteum granddaughter.

Code of Civil Procedure § 1281.2 requires the trial court to order arbitration of a controversy “[o]n petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy ... if it determines that an agreement to arbitrate the controversy exists.” In this case there is no dispute that an arbitration agreement governs the parties’ dispute. Accordingly, the threshold question is whether there is an agreement to arbitrate. (*American Express Co. v. Italian Colors Restaurant* (2013) 570 U.S. 228, 233, 133 S.Ct. 2304, 186 L.Ed.2d 417 [“arbitration is a matter of contract”]; *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (U.S.), LLC* (2012) 55 Cal.4th 223, 236, 145 Cal.Rptr.3d 514, 282 P.3d 1217 [“ ‘A party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.’ ” ”]; *Trinity v. Life Ins. Co. of North America* (2022) 78 Cal.App.5th 1111, 1120, 293 Cal.Rptr.3d 899 [“As the language of this section makes plain, the threshold question presented by every petition to compel arbitration is whether an agreement to arbitrate exists.”].)

Code of Civil Procedure section 1290.6

Under state and federal state law, there is a public policy in favor of arbitration. (*Morgan v. Sundance, Inc.* (2022) — U.S. —, 142 S.Ct. 1708, 1713, 212 L.Ed.2d 753; *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125, 251 Cal.Rptr.3d 714, 447 P.3d 680 [acknowledging strong public policy favoring arbitration under state law]; *DMS Services, LLC v. Superior Court* (2012) 205 Cal.App.4th 1346, 1352, 140 Cal.Rptr.3d 896 (*DMS Services*) [recognizing strong state and federal policy favoring arbitration].) However, “ ‘[e]ven the strong public policy in favor of arbitration does not extend to those who are not parties to an arbitration agreement or who have not authorized anyone to act for them in executing such an agreement.’ ” (*Jensen v. U-Haul Co. of California* (2017) 18 Cal.App.5th 295, 300, 226 Cal.Rptr.3d 797 (*Jensen*); accord, *Ford Motor Warranty Cases* (2023) 89 Cal.App.5th 1324, 1331, 306 Cal.Rptr.3d 611 (*Ford Warranty*); *DMS Services*, at

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p. 1352, 140 Cal.Rptr.3d 896 [with limited exceptions, “ “ ‘one must be a party to an arbitration agreement to be bound by it or invoke it’ ” ”].)

Montemayor v. Ford Motor Co., No. B320477, 2023 WL 4181909, at *5 (Cal. Ct. App. June 26, 2023)

The Defendant has provided nothing to support their contention that Christine Valdez had any legal authority to bind Plaintiff to the arbitration agreement. There is no document of any kind with her signature. Ms. Valdez’s representations, whatever they were, are not relevant. She either had authority or did not. As the facility was entirely aware the Plaintiff had dementia and likely had no capacity to give or withdraw consent to enter into a contract or agree to arbitration, they cannot now rely on any action or inaction on her behalf. Were Ms. Valdez to pursue any separate claims related to the contract and services, the arbitration provision would bind her for the purpose of her claims.

As no binding arbitration agreement has been established between the parties, the motion is denied.

TENTATIVE RULING #4: DEFENDANT’S MOTION TO COMPLE ARBITRATION IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.